

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                                                    |                                     |                                                       |                                    |                                 |
|---------------------------------------------------|----------------------------------------------------------------------------------------------------|-------------------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Maura Roche                      | Team:<br>Squad #10                                                                                 | CCRB Case #:<br>201809331           | <input type="checkbox"/> Force                        | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                   |                                                                                                    |                                     | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Wednesday, 11/07/2018 3:15 AM | Location of Incident:<br>Adam Clayton Powell Jr Blvd between<br>West 111th Street and 112th Street | 18 Mo. SOL<br>12/22/2020            | Precinct:<br>28                                       |                                    |                                 |
| Date/Time CV Reported<br>Wed, 11/07/2018 4:39 PM  | CV Reported At:<br>CCRB                                                                            | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Wed, 11/07/2018 4:39 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)       | Shield | TaxID  | Command |
|--------------------------|--------|--------|---------|
| 1. DTS Alberto Pizarro   | 04954  | 934070 | 028 PCT |
| 2. An officer            |        |        |         |
| 3. POM Anthony Sengco    | 12494  | 956252 | 028 PCT |
| 4. POM Yeraldy Bonifacio | 15500  | 952482 | 028 PCT |

| Officer(s)                | Allegation                                                                                       | Investigator Recommendation |
|---------------------------|--------------------------------------------------------------------------------------------------|-----------------------------|
| A . DTS Alberto Pizarro   | Abuse: Detective Alberto Pizarro stopped the vehicle in which § 87(2)(b) was an occupant.        | A . Unsubstantiated         |
| B . POM Yeraldy Bonifacio | Abuse: Police Officer Yeraldy Bonifacio stopped the vehicle in which § 87(2)(b) was an occupant. | B . Unsubstantiated         |
| C . POM Anthony Sengco    | Abuse: Police Officer Anthony Sengco stopped the vehicle in which § 87(2)(b) was an occupant.    | C . Unsubstantiated         |
| D . An officer            | Abuse: An officer stopped the vehicle in which § 87(2)(b) was an occupant.                       | D . Officer(s) Unidentified |
| E . POM Yeraldy Bonifacio | Abuse: Police Officer Yeraldy Bonifacio frisked § 87(2)(b)                                       | E . Unsubstantiated         |
| F . POM Yeraldy Bonifacio | Abuse: Police Officer Yeraldy Bonifacio searched § 87(2)(b)                                      | F . Unsubstantiated         |
| G . DTS Alberto Pizarro   | Abuse: Detective Alberto Pizarro searched the vehicle in which § 87(2)(b) was an occupant.       | G . Unsubstantiated         |
| H . POM Yeraldy Bonifacio | Abuse: Police Officer Yeraldy Bonifacio refused to provide his name to § 87(2)(b)                | H . Unsubstantiated         |
| I . POM Yeraldy Bonifacio | Abuse: Police Officer Yeraldy Bonifacio refused to provide his shield number to § 87(2)(b)       | I . Unsubstantiated         |
| J . DTS Alberto Pizarro   | Abuse: Detective Alberto Pizarro failed to provide § 87(2)(b) with a business card.              | J . Unsubstantiated         |
| K . POM Yeraldy Bonifacio | Abuse: Police Officer Yeraldy Bonifacio failed to provide § 87(2)(b) with a business card.       | K . Unsubstantiated         |
| L . POM Anthony Sengco    | Abuse: Police Officer Anthony Sengco failed to provide § 87(2)(b) with a business card.          | L . Unsubstantiated         |
| M . An officer            | Abuse: An officer failed to provide § 87(2)(b) with a business card.                             | M . Officer(s) Unidentified |
|                           | § 87(4-b) § 87(2)(g)                                                                             |                             |
|                           |                                                                                                  |                             |

| Officer(s)           | Allegation | Investigator Recommendation |
|----------------------|------------|-----------------------------|
| § 87(4-b) § 87(2)(g) |            |                             |

### Case Summary

On November 7, 2019, § 87(2)(b) filed this complaint with the CCRB online.

On November 7, 2019, at approximately 3:15 a.m., § 87(2)(b) was looking for parking in the vicinity of Adam Clayton Powell Jr. Boulevard between West 111<sup>th</sup> Street and West 112<sup>th</sup> Street, when Det. Alberto Pizarro, PO Yeraldy Bonifacio, PO Anthony Sengco, all of the 28<sup>th</sup> Precinct, and an unidentified officer stopped § 87(2)(b) (**Allegations A, B, and C: Abuse of Authority – Vehicle Stop, unsubstantiated; Allegation D: Abuse of Authority – Vehicle Stop, officer(s) unidentified**). PO Bonifacio approached § 87(2)(b) and asked for his license and registration. After § 87(2)(b) provided these to him, PO Bonifacio asked § 87(2)(b) to step out of the car and then allegedly frisked (**Allegation E: Abuse of Authority – Frisk, unsubstantiated**) and searched (**Allegation F: Abuse of Authority – Search (of person), unsubstantiated**) § 87(2)(b). PO Bonifacio led § 87(2)(b) to the back of his car while Det. Pizarro allegedly searched § 87(2)(b) car (**Allegation G: Abuse of Authority – Vehicle Search, unsubstantiated**).

After Det. Pizarro searched § 87(2)(b) car, he told PO Bonifacio to let § 87(2)(b) go. § 87(2)(b) started to walk back to his car while PO Bonifacio started to walk back to his, which was parked immediately behind § 87(2)(b) car. § 87(2)(b) turned around and loudly asked PO Bonifacio for his “information,” which PO Bonifacio allegedly did not provide (**Allegation H: Abuse of Authority - Refusal to Provide Name, unsubstantiated; Allegation I: Abuse of Authority – Refusal to Provide Shield Number, unsubstantiated**). Det. Pizarro, PO Bonifacio, PO Sengco, and the unidentified officer all allegedly left the location without providing § 87(2)(b) with their business cards (**Allegations J, K, and L: Abuse of Authority – Refusal to Provide RTKA Card, unsubstantiated; Allegation M: Abuse of Authority – Refusal to Provide RTKA Card, officer(s) unidentified**).

§ 87(4-b), § 87(2)(g)

No summonses or arrests resulted from this incident. Security footage from 1842 Adam Clayton Powell Jr. Boulevard captures an unmarked police car signal for § 87(2)(b) to pull over (**BR 01**). There is no other video of the incident.

### Findings and Recommendations

**Allegation (A) Abuse of Authority: Detective Alberto Pizarro stopped the vehicle in which § 87(2)(b) was an occupant.**

**Allegation (B) Abuse of Authority: Police Officer Yeraldy Bonifacio stopped the vehicle in which § 87(2)(b) was an occupant.**

**Allegation (C) Abuse of Authority: Police Officer Anthony Sengco stopped the vehicle in which § 87(2)(b) was an occupant.**

**Allegation (D) Abuse of Authority: An officer stopped the vehicle in which § 87(2)(b) was an occupant.**

**Allegation (E) Abuse of Authority: Police Officer Yeraldy Bonifacio frisked § 87(2)(b)**

**Allegation (F) Abuse of Authority: Police Officer Yeraldy Bonifacio searched § 87(2)(b)**

**Allegation (G) Abuse of Authority: Detective Alberto Pizarro searched the vehicle in which § 87(2)(b) was an occupant.**

**Allegation (H) Abuse of Authority: Police Officer Yeraldy Bonifacio refused to provide his name to § 87(2)(b)**

**Allegation (I) Abuse of Authority: Police Officer Yeraldy Bonifacio refused to provide his shield number to § 87(2)(b)**

**Allegation (J) Abuse of Authority: Detective Alberto Pizarro failed to provide § 87(2)(b) with a business card.**

**Allegation (K) Abuse of Authority: Police Officer Yeraldy Bonifacio failed to provide § 87(2)(b) with a business card.**

**Allegation (L) Abuse of Authority: Police Officer Anthony Sengco failed to provide § 87(2)(b) with a business card.**

**Allegation (M) Abuse of Authority: An officer failed to provide § 87(2)(b) with a business card.**

On November 7, 2018, at approximately 3:15 a.m., § 87(2)(b) (BR 02) stated that he was driving a rented Ford Explorer eastbound on West 112<sup>th</sup> street between Adam Clayton Powell Jr. Boulevard and Frederick Douglas Boulevard in Manhattan looking for parking. § 87(2)(b) made a right onto Adam Clayton Powell Jr. Boulevard, and observed an unmarked black Ford Fusion with its lights and sirens on behind him. § 87(2)(b) immediately pulled over and four officers, Det. Pizarro, PO Bonifacio, PO Sengco, and white male officer who was approximately 5'4" to 5'5" tall, 150 to 160 pounds, with a bald head and pale eyes, exited the car and approached § 87(2)(b)

PO Bonifacio, who was standing at the front driver's side door, asked § 87(2)(b) for his license and registration while Det. Pizarro, who was standing at the front passenger side, used his flashlight to illuminate the interior of the car. § 87(2)(b) gave PO Bonifacio his license and the rental agreement. PO Bonifacio glanced at the documents, and asked § 87(2)(b) to step out of the car. § 87(2)(b) exited the car, and PO Bonifacio squeezed § 87(2)(b) front and back pants pockets and felt over his clothes around § 87(2)(b) waist. PO Bonifacio inserted the tip of his finger into both of § 87(2)(b) back pants pockets and pulled the pocket away from § 87(2)(b) body so that he could see the contents of the pockets. PO Bonifacio then told § 87(2)(b) to stand at the back of his car with PO Sengco and the white male officer.

PO Bonifacio followed § 87(2)(b) to the back of the car and handed § 87(2)(b) license to PO Sengco, who appeared to enter § 87(2)(b) information into his cell phone. PO

Bonifacio instructed § 87(2)(b) to look away from his car, but § 87(2)(b) wanted to see what Det. Pizarro was doing, so he looked back toward his car and saw Det. Pizarro open the glove compartment and the center console and inspect the contents of both. § 87(2)(b) had a clear view of this because the unmarked car's headlights were lighting up the interior of § 87(2)(b) car. One of the officers instructed § 87(2)(b) to look away from the car, so he did not see where else Det. Pizarro was looking, but he estimated that Det. Pizarro was inside the car for approximately one minute, after which time he told PO Bonifacio to let § 87(2)(b) go.

As § 87(2)(b) was walking from the trunk of his car to the front driver's seat, he stopped, turned around, and loudly asked PO Bonifacio, who was walking back to his car, for his "information." PO Bonifacio, who was approximately four feet away from § 87(2)(b) with his back facing § 87(2)(b), did not stop or acknowledge § 87(2)(b) request and did not ever provide § 87(2)(b) with his name or shield number. The officers then all left the scene. None of the officers provided § 87(2)(b) with a business card before leaving the location, although, § 87(2)(b) had not specifically asked for one.

Det. Pizarro (**BR 03**) had no independent recollection of this incident, despite being given a synopsis of § 87(2)(b) account. Based on his memo book entries (**BR 04**), Det. Pizarro stated on November 7, 2018, at approximately 1:59 a.m., he was working as an Anti-Crime officer with PO Bonifacio and PO Sengco when he made an arrest at § 87(2)(b) § 87(2)(b) and subsequently went to the 28<sup>th</sup> Precinct stationhouse to process the arrest. Det. Pizarro did not recall ever working with a fourth officer. Det. Pizarro arrived at the stationhouse at 2:12 a.m., and he stayed there for the remainder of this tour to complete the arrest paperwork. Det. Pizarro had no recollection of going back out on patrol or interacting with § 87(2)(b) Det. Pizarro recognized § 87(2)(b) from a prior arrest in December 2017, but he had no recollection of ever seeing him after that incident.

PO Bonifacio (**BR 05**) had no independent recollection of the incident, despite being given a synopsis of § 87(2)(b) account and having been shown a picture of § 87(2)(b) or of what he had done that day. PO Bonifacio had not made any memo book entries (**BR 06**) noting who he worked with or any police actions he took during that tour. PO Bonifacio had no recollection of stopping, frisking, or searching § 87(2)(b) nor could he recall if anyone asked him for his "information" or his name and shield number during the course of his tour. PO Bonifacio did not recall seeing Det. Pizarro search § 87(2)(b) car. PO Bonifacio stated that officers are required to provide civilians with business cards after all stops, but he had no recollection of stopping any vehicles that night.

PO Sengco (**BR 07**) also had no independent recollection of the incident despite being given a synopsis of § 87(2)(b) account and having been shown a picture of § 87(2)(b) PO Sengco stated that he was working with Det. Pizarro and PO Bonifacio and did not recall working with a fourth officer that night. PO Sengco stated that they remained within the confines of the 28<sup>th</sup> Precinct, but he could not recall where within the precinct their Anti-Crime team was patrolling. PO Sengco had no recollection of stopping any vehicles during that tour, or witnessing any officers frisk and search § 87(2)(b) or search § 87(2)(b) vehicle. PO Sengco did not recall anyone asking for his "information," name, or shield number, and he had no recollection of refusing to provide identifying information to anyone, nor did he recall observing any other officers do this. PO Sengco did not recall failing to provide anyone with a business card during that tour.

PO John Paul Pennacchia (**BR 08**) and PO John Vampas (**BR 09**), both of the 28<sup>th</sup> Precinct, both stated that they were working together on November 7, 2019, as Anti-Crime

officers with Lieutenant Thomas Sheahan, who was, at that time, assigned to the 28<sup>th</sup> Precinct. Neither PO Pennacchia nor PO Vampas had any recollection of ever working with Det. Pizarro, PO Bonifacio, or PO Sengco at any point during that tour.

A clip of security footage (**BR 01**) from 1842 Adam Clayton Powell Jr. Boulevard, captures an SUV turn onto Adam Clayton Jr. Boulevard followed by a dark colored sedan with police lights flashing. The SUV slows down and then pull forward out of the frame with the sedan following. Both vehicles stop outside of the frame.

A warrant audit (**BR 10**) was performed by PO Sengco for § 87(2)(b) on November 7, 2018, at approximately 3:33 a.m.

The Roll Call (**BR 11**) lists PO Pennacchia, PO Bonifacio, PO Vampas, and PO Sengco as the only officers assigned to Anti-Crime. Det. Pizarro does not appear on the Roll Call.

As shown in their MOS photographs, PO Vampas is a white male, § 87(2)(b), with medium length black hair, brown eyes, and an average build. PO Pennacchia is a white male, § 87(2)(b), with short black hair, brown eyes, and an average build. Lieutenant Sheahan is a white male, § 87(2)(b), with short brown hair, brown eyes, and an average build. A search of the database (**BR 17**) for white, bald, male officers within the 28<sup>th</sup> Precinct did not match any of the officers listed on the Roll Call for Tour 3 on November 6, 2018 (**BR 11**) or Tour 1 on November 7, 2018 (**BR 12**).

§ 87(2)(g)  
[REDACTED]

§ 87(2)(g)  
[REDACTED]

It is therefore recommended that **allegations A, B, C, E, F, G, H, I, J, K, and L** be **unsubstantiated**.

§ 87(2)(g)  
[REDACTED]  
It is therefore recommended that **allegations D and M** be closed as **officer(s) unidentified**.

§ 87(2)(b), § 87(2)(g)

#### **Civilian and Officer CCRB Histories**

- This is the first CCRB complaint to which § 87(2)(b) has been a party (**BR 14**).
- Det. Pizarro has been a member of service for 15 years and has been a subject in 18 CCRB complaints with a total of 47 allegations, five of which were substantiated.
  - 201110628 involved a substantiated allegation of a vehicle search. The Board recommended instructions, and the NYPD imposed no penalty
  - 201310644 involved substantiated allegations of physical force, a frisk, a search of person), and a stop. The Board recommended Charges. Det. Pizarro was found not guilty for the search (of person) and the force and guilty for the Stop and the frisk. The NYPD imposed a penalty of a forfeiture of three vacation days for each guilty verdict.
- PO Bonifacio has been a member of service for six years and has been a subject in seven CCRB complaints with a total of 12 allegations, none of which were substantiated § 87(2)(g)
- PO Sengco has been a member of service for five years, and this is the first complaint to which he has been a subject.

#### **Mediation, Civil and Criminal Histories**

- This complaint was not suitable for mediation.
- As of February 28, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (**BR 15**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

---

Squad No.: 10

Investigator: \_\_\_\_\_  
Signature Print Title & Name Date

Squad Leader: \_\_\_\_\_  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date